

4th Stage → Maturity of the Law

- when the law is matured, there is issue of Equality & Security.

• Individual legal rights are at center. ^{emphasize.}

5th Stage → Socialization of the Law

- focus on social interest, rather than individual interest.

→ End goal → furthering/developing further civilization.

→ The purpose or end goal of a law is increasing or the concept is becoming wide as the stage increases.

① His concept can be seen by 3 senses/dimensions;

① It is as a means of Social Control. → the force of law come from the society.
↳ highly specialized form of Social Control.

② Law as an authoritative guide for decision.

③ It is as a judicially & administrative process.

→ The defⁿ of law may differ as the circumstance change in the society differs.

Theory of Interest

+ Every group/individual is motivated by its own interest.

↳ to protect his own ^{peculiar} interest.

✓ If every individual is motivated to protect their interest there is a possibility of conflict of interest.

✓ Legal system should recognize such interests.

✓ define the limit of the interest.

★ Thus, it helps to resolve the conflict of interests.

⊗ Three interests which needs legal protection;

① Individual interest → claims / demands which devolve from the stand point of the individual life.

- Interests of Personality from view of physical person

- Interests in the domestic life

② Public interest → claims / desires which devolve from the stand point of the political life.

- Every individual have responsibility for another individual.

- ✓ An interest which all the society do have.

③ Social interest → claims / desires which devolve from the stand point of the social life.

- ✓ Interests of preserving diff social institutions.

Criticism on R. Pound

- The term "Engineering"

- ↳ Equates society to some sort of ^{building} factory.

- ✓ He is not in position to tell us when interests conflict, how can we balance them.

- ✓ The classification of interest depend on individual presumption.

- ↳ Classification still = different from ^{individual} to ^{individual} individuals.

- ✓ In the aspect of civilization.

- ↳ Is civilization always progressive / keeps growing?

- ✓ But in pound factory there is always growth in civilization, no decline.

Chapter - Seven

LEGAL - REALISM

American
Scandinavian

• Realism ^{intellectual activity for} testing of theories by some sort of measurement ^{intensity of} what is practiced or observed in reality.

Legal Realism → a thought of legal theory, which developed in 20th c.

✓ Law without idealizing it.

✓ Try to describe law without idealizing it.

⊗ focus on actual day to day activity.

⊗ law in action

✓ The philosophers believe, the theory in natural philosophy is not in position to appreciate the day to day activity.

✓ ^{The desire to study law} How judicial decisions are reached in reality.

→ what factor influenced the judges judgment?

The difference between American & Scandinavian Legal Realism

⊗ Americans • Come from Court,

• Look law in narrow sense. ^{role of court only.}

⊗ Scandinavian • Come from School of law.

• Look law in broad sense. ^{have relation to Sociology School of thought}

⊗ Foundation of American Legal Realism:

↳ Pragmatic view of William James.

✓ The Black content of law is not the focus.

→ When law is issued, it have to be pragmatic, Practical.

• Focus on end result

✓ Practice of the court

• Law from the context of the end goal.

✓ Law is what the ~~court~~ decided in the last Decisions → by how the judges perceive the case, not by the law of the state.

• It's most relevant one.

• Focus on the prominent role of the judges.

→ Most of judges are role skeptics.

✓ How we understand the issue / attitude of the scenario have impact in given decisions other than the role.

• They are fact skeptics → the misjustice come because of mis investigation of facts.

✓ Uncertainty in finding of facts.

Oliver W. Holmes (1841-1935)

Law as prediction of what court says.

✓ Predictive analysis of the law.

✓ Rules, statutes are just a tools for judges, juries to make a decision.

• Real Law → what the courts will look in fact.

→ the end result; from the decision view.

2 ideas:-

① His prediction of the law

② His view that the politics & personal ^{Preludire} ~~view~~ has more to do w impact on decision, than logical application of law.

- ✓ Define law, in way what courts do in practice.
- Law should be defined, in terms of what actually the courts said.

✓ Oliver is some how rule skeptic.

↳ He believe that more than the rules; Policy & personal prejudice influence decision.

✓ He recognize the importance of extralegal factors.

⊗ What the courts will do in fact = is what ^{by the law} ~~mean~~ ^{mean}

Criticism on Oliver Holmes

✓ Law may not always emanate from the judiciary.

↳ He disregard dte laws, like administrative laws, Social institution laws.

✓ He disregarded mistakes of Judges.

↳ So their mistake is going to be a law.

✓ What about the judiciary itself.

↳ Is the judiciary established by judicial decision.

✓ He make easy the process of Judiciary.

John. ch. Gray (1839-1945)

Central idea Contractual of the Judges

✓ Considering the law as a law of contract laid down by the Judges.

Premises • The state ^{exists} is there to protect & ^{promoting} for the sake of ^{human interest}

↳ This is enforced through the means of rights & duties.

✓ There is no universal knowledge of these rights & duties,
∴ No one can perfectly enforce his rights & duties
to wards others.

✓ The state need to establish judicial organ, for the
sake of determining those rights & duties.

✓ The Judge with the judiciary will determine the rights & duties
by taking into account the facts.

⊙ Acc. to Gray, The laws are the ways by which the judges
are enforcing the rights & duties.

✓ When they deduce legal rights & duties from the facts.

⊙ Law means a rules by which a judicial organ uses to
determine legal rights & duties.

✓ Assume central role of the Judge.

↳ How far the Judge plays its role??

⊙ When we think of law, it's Judge made ones.

↳ b/c what the court decide is the law.

What about statutes, rules enacted by Parliament??

⊙ Those are legislations are not by their own self not
laws. They are considered as a source of law.

✓ Only become law, when they are decided in court.

✓ The court give life, for the dead words of legislation.

Two Category of Law: The law
→ system of rules applied by the court.

A Law

↳ means sources.
✓ a statutes passed by
legislative organ

Statutes are not law, rather they become the law
when they are included in judicial decisions.

→ Statutes are not binding, what is binding are those statutes which are included in judicial decisions.

So law is the opinion of the judges.

✓ Our focus about the law have to be what is the existing ^{not idealist} ^{issue} ^{the actual practice} ^{judges}

→ not the religion, morality issue, it is the practical ^{judges}

Criticisms ON John. Bl. Gray

① He himself put contradicting points

↳ made the law, in other case again a law or as a source.

② All laws don't go to Court.

↳ Some courts have the role to facilitate what ^{lawyer} matters

All laws don't go to Court, but govern our activities.

③ Statutes as a source of law.

↳ He didn't differentiate Statutes, in lesser issues like religion, morality. → He equate statute with them.

④ → The law which established the judiciary is even disregarded.

↳ Is the law which established the judiciary also a law which is entertained in the Court

Karl L. L. Will (1893-1962)

Rule Skepticism

① The one who disbelief in the final result of rules/laws.

→ Law is what the officials of Courts ^{lawyer} like Judges, clearly & others say so.

↳ It is wider one.

↳ b/c it focus in all officers of law.

After decades, he criticize him self, he oppose himself.

↳ No defs of law can adequately stipulate the task of law.

Law is a means for achievement of social end.

Proper Idea → When ever we see dev't of law = focus on inward ^{ahead} / forward looking of the law.

Americans Legal Realism
have two categories

Role Skepticism → disbelief of the rule. Looking of the law in terms of molding the law for accomplishment the law for what needs of the present & the future.

Jerome Frank → **Fact** → the just decision depend on how we understand the fact (fact investigation).

→ I don't read the page of all the case. This makes fact finding unjust.

It didn't determine how individuals have to behave.

The things we observe, can not only determine our end result. → **role skepticism** of judicial decision = fact finding uncertainty defect in

law do have the for 5 (five) functions.

(5) Five Law Jobs

① **Disposition of trouble cases** → it is after the fact.
↳ use of law as a means to repair the problems (disorder).
↳ The most important law job.

↳ we can remake the society. make it back to the time before the disorder was happened.

② **Preventive of characters of conduct** is before the fact.

↳ tries to avoid wrong doing, trouble.

↳ effective reorientation of conduct.

③ **Allocation of authority & arrangement of procedure**

↳ serve as authoritative source.

↳ a form of allocating authority to diff bodies & by arranging procedures.

↳ establishing system

↳ very important job.

④ **Provisions of defective incentive for the organization of society**.

↳ how we are just organize the society.

↳ positive side of law.

↳ take in to consideration the changing needs, what conducts are expected. → How can we make arrangement in the society.

⑤ Juristic methods → Involvement of Jurists, for the sake of ^{the law} enhancing for the sake of make the law of job better.

• The first three → the most important thing for the Survival of the Society.

• The last two → for the sake of efficiently & enhancing the law.

He tries to describe Common characteristics of American legal realism.

Acco to Realism ^{FIX} Law is a moving one, always in change as it is judicial interpretation.

• Law is a means.

↳ It always need to be ^{continuously} examined by its purpose.

• The Society is also in change.

↳ In change in the Society, we need to examine our law.

• ^{Commonly shared} Realism is Generally, They distrust in ^{disbelievers} historical ^{tradition} principles of law (rules).

✓ distrust traditional theories.

✓ Evaluate the law in its social effect.

Criticisms on Jerome Frank

• He give too much emphasize for ^{role} Judges.

↳ But, Actually there is a rule which determine how judges have to work there job.

• His idea goes with Common law Countries, It is difficult to apply it in Civil law countries.

↳ B/c The system in civil law, have rules & regulation that judges have to refer when they give decision.

• When ever we entertain cases, then we develop a principle & give decision based on the principle. So the principles content depend on how we apperitate the fact finding. ↳ But, Decision should not be determined by the judges feeling, rather determined by core principles of law.

→ So, whenever decision is depend on feeling of Judges, It creates objective justice, Create Uncertainty.

General N, The American Legal Realism:

① focus on role of Courts, esp. role of Judges
Chapter - Eight

Enforcement of Morality

→ How far we enforce moral ~~principles~~ principles in our law?

- Can a society use law as a weapon to protect its social moralities???

① ^{hero of G.B. case} Allen Turing → Enigma, he break this Confidential code of Germany.
Wolfenden Report → 1957

(Report of the Committee on Homosexual Offences & Prostitution)

② Come up with two Recommendations;

(i) prostitution

+ Private Prostitution should remain legal. & Public ^{advertisement} solicitation is forbidden.

(ii) Homosexual acts

+ ~~Homosexual~~ Homosexual act in private b/n consenting Adults above the age of 21 should be legalized.

→ The first document / view which allows homosexuality.

What should be the relationship
law & morality?

Why they decide in such away? ^{Wolfenden Report} ^{The bases for the recommendations}

① What is the ^{Purpose} importance of criminal law?

- ✓ It is to protect the people from offences.
- ✓ It is not to intervene in the private life of the individual.

② The Base for the two recommendations is the John Stuart Mill ^{Classic view on Liberty} theory of liberty.

→ We should not intervene in private act of individuals, unless it cause harm on others.

✓ if it has impact on third parties

→ we impose law, only for the sake of protecting others or to avoid harm to others, not on themselves.

③ Law should not intervene in individuals private life, unless it cause harm on others. ^{It is against morality.}

④ Even if it cause harm on a private individual, the law can't order the individual. ^{It is against paternalism}

Lord Patrick Devlin → He criticize the Wolfenden Report.

Justification for Legal Enforcement of Morality

✓ Society have the right to pass judgment on all aspects of morality.

^{Wolfenden} ^{Report} ^{Conclusion} ^{Consent} → It was major issue. ^{Crucial one.}

Devlin tries to criticize this idea.
→ Consent is not a sufficient ground for an action to be a private morality.
- It means that consent can overcome any immoral action.
↳ This is wrong. It will be inconsistent with the fundamental principles of criminal law.

⑤ The ~~enforcement~~ criminal law has never come up with considering the consent of the individual, it consider it as it is against public interest.

When such acts exist it is done against society not only in individual.

So, what is the justification to enforce morality with law??

Why private action is considered as public interest?

3. Fundamental Questions

① Has society do have a right to pass judgement on all matters of morality?

↳ Does morality always a subject of private act/judgment.

② If a society do have the right to pass judgement, do the society have right to enforce public morality using law as a ~~weapon~~?

③ What type of moral law have to enforce all type of morals? or for some? Can we use law to enforce all types of morals? → A hard question

Answers

① He tries to address it in POSITIVE way.

→ Yes, There is a public morality, it is a share one in community. Society = community of idea

② From this shared ideas, we can derive public morality / moral principles. Like the govt, recognized morality in a state is essential.

↳ This means the society may use law as a means to enforce the moral principles that are essential to the society.

✓ If we didn't kept these principles as a law, they may disappear. the rational behind this, it is by analogy.

• To properly have a good country, we need govt

• an established public morality is essential for stable good country.

• He compare: ^{morality} govt vs ^{immorality} treason

③ we need to be selective, b/c all type of morality can't be subject of the law. Who is going to decide it should be the subject of law???

↳ We will take a reasonable man standard.

↳ Don't expect reason for his decision. it may be feeling. it is not rational man.

Criticisms

✓ How we can be selective???

✓ He didn't make separation b/w legal moralism & paternalism.

Hart's reply for Devlin

1963 → Hart publish about liberty, law & morality.

✓ tries to criticize the devlin & support the wolfe report & support's idea of Stuart mill.

✓ tries to defend the conclusion of wolfe report. ^{have exception though.}

⊗ The purpose of criminal law acco to devlin it is for the purpose of enforcing the public morals of the society is misguided.

↳ b/c he support private sphere of life, where law don't interfere. ^{not business of law}

✓ he took position of undermining moral conservatism.

⊗ The idea of devlin is not in the position of distinguishing b/w coercion for the sake of enforcement of moral principles, that of coercion for the sake of the agent of own good. ^{fail to distinguish} ^{Social} ^{legal moralism} ^{This is not appropriate.} ^{paternalistic approach}

⊗ The business of law have to be safeguarding the interest of the agent. ^{the paternalistic approach} ^{It is a limitation for liberty.} ^{the law have to act as a parent.}

⊗ Hart brings some new w/c is missed in Stuart mill, both support private sphere of life, which is not business of the law, but for Hart there can be interference in two conditions. ^{this is the new add it}

↳ when it affects third parties or the doer himself.

Devlin → A change in a society morality is destroying the society.

Hart → This will led as to the law has a mandate to preserve the moral principles of the society. ^{so it is a mistake.} ^{the society.} ^{we can change the morality within the existence of}

⊗ A flexible approach need to be adapted to enforce morality in law.

Chapter 9 → Justice

↳ to be continued. + Page 199